Minutes of the Special Meeting of the Council of the Corporation of the Town of Ajax Held Electronically on Monday, July 27, 2020 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier gave a short introduction regarding the electronic Council meeting format and noted that the meeting was being live streamed on the Town's website.

Mayor Collier called the meeting to order at 7:05 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. By-law (Enable Electronic Participation at Meetings)

Moved by: R. Tyler Morin
Seconded by: A. Khan

That By-law number 27-2020 be read a first, second and third time and passed.
CARRIED

Motion to Suspend the Rules of Procedure

Moved by: L. Bower
Seconded by: A. Khan

That the rules of procedure be suspended in order to introduce a closed session item without notice pertaining to a position, plan, procedure, criteria or instruction to be applied to negotiations carried on or to be carried on by or on behalf of the municipality.
CARRIED UNANIMOUSLY

4. Adoption of Minutes

4.1 Regular Meeting June 15, 2020

Moved by: M. Crawford
Seconded by: J. Dies

That the Minutes of the regular meeting of Council held on June 15, 2020 be adopted.
CARRIED

4.2 Special Meeting June 29, 2020

Moved by: L. Bower
Seconded by: S. Lee

That the Minutes of the Special meeting of Council held on June 29, 2020 be adopted.
CARRIED

5. Question Period

Mayor Collier noted that members of public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. No questions were received.

6. Delegation and Petitions/Public Hearings

6.1 Draft Carruthers Creek Watershed Plan – TRCA Overview

Geoff Romanowski, Acting Director of Planning and Development Services, introduced presenters and representatives from the TRCA and Region of Durham. Tony Morris, Project Manager, Watershed Planning and Reporting - TRCA, presented an overview of the Draft Carruthers Creek Watershed Plan and the recommendations therein. Mr. Morris discussed the development of the Plan and its nine sections, existing watershed conditions in four key areas, future watershed condition scenarios, and overview of management framework goals, and management key recommendations.

Members of Council asked questions regarding review of the Plan by the Minister of Environment, types of stream barriers, effects of water temperature on aquatic life, Carruthers Creek watershed absorption compared to others, cost implications of potential development, duration of the Plan's development, staffing participation, implementation of modern stormwater infrastructure, and hydrology analysis methodology.

Laura Del Giudice, Senior Manager, Watershed Planning and Reporting – TRCA, responded to questions from Council and provided an overview of the Plan's public review and consultation process. Ms. Del Giudice and Sameer Dhalla, Director, Development and Engineering Services – TRCA, provided information and clarification regarding stream barriers in relation to fish passage, the size, shape and impervious areas of the Carruthers Creek Watershed in relation to flooding, the scope of the Plan's development and project management, timelines, staff contributions, and scientific studies that contributed to the Plan's development.

John MacKenzie, CEO at TRCA, responded to questions from Council Members regarding the TRCA's experience with other Municipal Zoning Orders. Council thanked the TRCA for their presentation.

6.2 Economic Development COVID-19 Recovery & Growth Work Plan

Don Terry, Interim Manager of Economic Development, presented an overview of the contents of the written report and the recommendations therein. He discussed the Town's participation in the Durham Economic Task Force, and twenty economic development projects and initiatives to assist businesses with recovery and growth. Projects and initiatives include: creation of dedicated web pages for COVID-19 business recovery resources, "Rediscover Downtowns of Durham" project, the #ShopHere digital main streets campaign, fast-tracking temporary patio permit approvals, relaxation of the mobile sign by-law for businesses, "EcD in 30" video project, Ajax Business sessions, outreach and support, #SupportLocal social media campaign, support of the national #TakeOutDay initiative and updates to the Town's online restaurant guide, supporting 1nnovation Village and local innovation programming and partnerships, upcoming AI for Ajax sessions, siberXchange 2.0, CityStudio Durham, upNext Ajax, tourism, Bike-Friendly Businesses, and a status update on the five-year Economic Development Action Plan.

Members of Council asked questions regarding business participation in Durham Economic Task Force webinars, continuation of the upNext Ajax program, extension of the temporary patio permit approval timeframe, Ajax business success stories, return on investment for the Town's partnership with siberX, cycling tourism, and open street opportunities. D. Terry and Geoff Romanowski, Acting Director of Planning & Development Services, responded to questions from Council Members.

6.3 Downtown Community Improvement Plan Program Suspensions – Part 2

Michael Sawchuck, Senior Planner, presented an overview of the contents of the written report and the recommendations therein with respect to the suspension of the development charges exemption program. He discussed the project's background, program components, Community Improvement Plan review, existing program status, and development charges exemption suspension and strategy.

Members of Council asked questions regarding the timeframe for completion of the downtown CIP review, and potential effects of the development charges exemption suspension on forthcoming development applications. M. Sawchuck responded to questions from Council Members.

7. Correspondence

Members separated correspondence Items 2, 3, 4, 7, 9, 11, and 15 for discussion.

Moved by: R. Tyler Morin
Seconded by: A. Khan

That the balance of the report dated June 27, 2020 containing Items of Correspondence be adopted.

CARRIED

Council Members discussed Correspondence Item 2, "Office of the Mayor: Objection to a Requested Ministerial Zoning Order".

Motion

Moved by: R. Tyler Morin
Seconded by: A. Khan

That Item 2 of the Correspondence Report "Office of the Mayor: Objection to a Requested Ministerial Zoning Order" be endorsed.

CARRIED

Council Members discussed Correspondence Item 3, "Accessibility Advisory Committee: Onley Report Response". A. Harras, Acting Director of Legislative & Information Services/Clerk, provided information on the Town's Accessibility Plan and provincial reporting.

Motion

Moved by: A. Khan
Seconded by: S. Lee

That Item 3 of the Correspondence Report "Accessibility Advisory Committee: Onley Report Response" be endorsed.

CARRIED

Council Members discussed Correspondence Item 4, "City of Oshawa: Licensing Payday Loan Establishments".

Motion

Moved by: S. Lee
Seconded by: L. Bower

That Item 4 of the Correspondence Report "City of Oshawa: Licensing Payday Loan Establishments" be endorsed.

CARRIED

Council Members discussed Correspondence Item 7, "City of Pickering: Call to Action (Public Inquiry) – Orchard Villa", Item 9, "City of Sarnia: Long Term Care Home Improvements", and Item 11, "Municipality of Chatham- Kent: Psychosocial and Emotional Care of Long Term Care Residents".

Motion

Moved by: L. Bower
Seconded by: R. Tyler Morin

That Item 7, "City of Pickering: Call to Action (Public Inquiry) – Orchard Villa", Item 9, "City of Sarnia: Long Term Care Home Improvements", and Item 11, "Municipality of Chatham-Kent: Psychosocial and Emotional Care of Long Term Care Residents" of the Correspondence Report be received for information.

CARRIED

Council Members discussed Correspondence Item 15, "Joint Statement from Ontario Mayors and Chairs (AMO LUMCO MARCO) Emergency Call for Financial Support".

Motion

Moved by: S. Collier
Seconded by: M. Crawford

That Item 15 of the Correspondence Report "Joint Statement from Ontario Mayors and Chairs (AMO LUMCO MARCO) Emergency Call for Financial Support" be received for information.

CARRIED

8. Reports

8.1 Community Affairs & Planning Committee Report

None

8.2 General Government Committee Report

None

8.3 Summary of Advisory Committee Activities

Moved by: J. Dies
Seconded by: L. Bower

That the Summary of Advisory Committee Activities dated July 27, 2020 as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

8.4 Departmental Reports

8.4.1 2021 Budget and Forecast Timetable

Moved by: S. Lee
Seconded by: A. Khan

That the report on the 2021 Budget & Forecast Timetable be received for information.

CARRIED

8.4.2 2019 Federal Gas Tax Funding – Annual Report

Members of Council asked questions regarding gas tax funding project eligibility categories, and whether traffic calming measures were eligible under the local roads and bridges funding category.

Sandra Serrao, Acting Director of Finance/Treasurer and Julie Mepham, Acting Manager of Finance, responded to questions from Council Members and provided clarification on capital project eligibility for federal gas tax funding and the process for reviewing Town project funding eligibility and prioritization.

Motion

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the report "2019 Federal Gas Tax Funding – Annual Report" be received for information.

Motion to Amend

Moved by: S. Lee
Seconded by: M. Crawford

That the motion be amended to add the following clause:

"And that the federal government be requested to allow flexibility in how municipalities are permitted to allocate Gas Tax Revenue for the next two years."

CARRIED

Main Motion as Amended

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the report "2019 Federal Gas Tax Funding – Annual Report" be received for information; and

That the federal government be requested to allow flexibility in how municipalities are permitted to allocate Gas Tax Revenue for the next two years.

CARRIED

8.4.3 **Economic Development COVID-19 Recovery & Growth Work Plan**

Moved by: L. Bower
Seconded by: J. Dies

That the Economic Development COVID-19 Recovery & Growth Work Plan be received for information.

CARRIED

8.4.4 **Downtown Community Improvement Plan Program Suspensions – Part 2**

Moved by: L. Bower
Seconded by: A. Khan

1. That staff be authorized to begin public consultation to amend the Development Charges By-Law 50-2018, as required, to temporarily suspend the Development Charge Exemption/Grant Program in the Downtown Community Improvement Plan; and,

2. That general updates related to the Downtown Community Improvement Plan Review be communicated to Council by way of a dedicated workshop (or workshops) to be hosted in Fall 2020.

CARRIED

8.4.5 **Comments on Proposed Amendment 1 to A Place to Grow: Growth Plan for the Greater Golden Horseshoe (ERO Posting 019-1680)**

Members of Council asked questions regarding intensification rates, density targets, and growth forecast scenarios. Sean McCullough, Senior Planner, responded to questions from Members of Council and provided clarification.

Moved by: M. Crawford
Seconded by: J. Dies

1. That the Report entitled "Comments on Proposed Amendment 1 to A Place to Grow: Growth Plan for the Greater Golden Horseshoe (ERO Posting 019-1680)" be received for information;

2. That Council endorse staff comments on ERO Posting 019-1680, included as Attachment 1 to this Report; and,

3. That staff comments on ERO Posting 019-1680 and a Council Resolution endorsing staff comments be sent to the Ministry of Municipal Affairs and Housing.

CARRIED

8.4.6 **Temporary Use Zoning By-law – Temporary Accessory Outdoor Patio Permissions during COVID-19**

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the Town initiated Temporary Use Zoning By-law to permit the temporary location of Licensed and Unlicensed Accessory Outdoor Patios, provided within Attachment 1 of this Report, be approved.

CARRIED

9. Regional Councillors' Report

Regional Councillors provided an update regarding Durham Regional Council matters, including presentations and discussions relating to the DRPS Body-worn Camera Project reinstatement.

Moved by: A. Khan
Seconded by: M. Crawford

That the Regional Councillors' Reports of July 27, 2020 be received for information.

CARRIED

10. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Deputy Mayor Dies assumed the Chair.

Mayor Collier introduced the motion and reviewed its contents. Council Members discussed concerns regarding the origin of the naming of Graf Spee Lane after the German battleship during the Battle of the River Plate, as well as the need to review the Town's Street Naming Policy, the possible review of the naming of Langsdorff Drive named after the Captain of the Graf Spee, and the significance of both names to the history of the Town of Ajax.

10.1 Graf Spee Street Naming

Moved by: S. Collier
Seconded by: L. Bower

WHEREAS Council of the Town of Ajax has adopted a policy to name its streets after personnel serving on the HMS Ajax during the Battle of the River Plate, and from other sources where Council deems appropriate;

AND WHEREAS the Town has also named streets after the ships engaged in the Battle of the River Plate including the Graf Spee, the German ship that was scuttled during the battle;

AND WHEREAS Council has received concerns from residents regarding the naming of Graf Spee Lane, and therefore deems it expedient to consider renaming the street;

NOW THEREFORE BE IT RESOLVED THAT Council directs staff to initiate the process to rename the street currently known as Graf Spee Lane;

AND THAT as per the Street Naming Policy, Council hereby directs the Director of Planning & Development Services to hold an open house for the affected residents of Graf Spee Lane, and to report back to Council with the results of the open house and a recommended course of action to rename the street;

AND THAT staff inform and consult with the Heritage Advisory Committee on the renaming of Graf Spee Lane.

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Khan, Regional Councillor Lee, Councillor Tyler Morin
Opposed: Regional Councillor Dies

CARRIED

Mayor Collier resumed the Chair.

10.2 **Protection of the Headwaters of the Carruthers Creek**

Regional Councillor Dies introduced the motion and reviewed its contents. Council Members discussed concerns with the City of Pickering's request for a Minister's Zoning Order to circumvent the development approvals process and the need to inform the Ministry of Municipal Affairs and Housing of the Town's position on the matter. Council Members discussed flooding impacts in Ajax and the value of green spaces, natural heritage and agricultural land.

Moved by: J. Dies
Seconded by: S. Lee

WHEREAS on June 29, 2020, Pickering Council endorsed a motion requesting that Minister Steve Clark enact a Ministerial Zoning Order (MZO) to fast-track the urbanization of approximately 2,200 hectares of lands (community of Veraine, northeast Pickering) on the headwaters of the Carruthers Creek;

AND WHEREAS Durham Region is currently undergoing a Municipal Comprehensive Review (MCR) which includes a Land Needs Assessment to determine future urban land requirements in the Region, which is to be completed, by July 2022;

AND WHEREAS Durham Regional Council will receive a report regarding the MZO request for consideration at its July 29th meeting.

AND WHEREAS the headwaters of the Carruthers Watershed is located in the 'White Belt', and if the requested MZO is approved, it would take away potential settlement area boundary expansions being considered through the MCR in Durham such as the Municipality of Clarington, City of Oshawa and Town of Whitby;

AND WHEREAS the headwaters are surrounded by protected Greenbelt lands, which will require the extension of municipal infrastructure (roads, waters, sewers) through the Greenbelt at a significant lifecycle cost to taxpayers;

AND WHEREAS the draft Toronto and Region Conservation Authority's (TRCA) Carruthers Watershed Plan indicates developing the headwaters will increase natural hazards and flood risk, placing people, properties, and infrastructure at risk of flooding downstream in Ajax by 77%

AND WHEREAS approval of the MZO circumvents the public planning process eliminating public consultation on this development and public consultation on the Carruthers Watershed Plan.

NOW THEREFORE BE IT RESOLVED THAT the Town of Ajax does not support the City of Pickering's Ministerial Zoning Order (MZO) request to re-zone the headwaters of the Carruthers (northeast Pickering) to allow for development;

AND THAT the City of Pickering be urged to withdraw its MZO letter to Minister Steve Clark requesting that the headwaters be urbanized by the developer, being Dorsay Development Corporation;

AND THAT the Town continues to support the Carruthers Creek Watershed Plan process

AND THAT the Town continues to supports opportunities for comprehensive public consultation.

AND THAT this motion be sent to Minster Steve Clark, Minister Rod Phillips, Dorsay Developments, and the City of Pickering and all Durham Region municipalities.

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Khan, Councillor Tyler Morin, Mayor Collier
Opposed: None

CARRIED

10.3 **Traffic Calming Action for Williamson Drive**

Councillor Khan introduced the motion and reviewed its contents. Council Members asked questions regarding the forthcoming Traffic Calming Warrant Report and impact of

additional traffic calming project requests. John Grieve, Transportation Supervisor, discussed the traffic calming warrants process, public consultation, prioritization of projects for implementation, and approved traffic calming for Ravenscroft Road. G. Romanowski discussed timelines for a report back to Council on design and costing for traffic calming locations outside the scope of the forthcoming report on traffic calming warrants.

Regional Councillor Lee raised a Point of Order as to whether the proposed amendment was different in nature to the main motion. Mayor Collier ruled that the amendment was in order.

Main Motion

Moved by: A. Khan
Seconded by: S. Lee

WHEREAS Town staff completed a traffic calming analysis of Williamson Drive West between Bellinger and Westney in the Fall of 2018 and the results showed that the road segment was not eligible for traffic calming at that time;

AND WHEREAS members of Council and Town staff have received numerous complaints from residents regarding serious traffic issues on Williamson Drive West over the past two years;

AND WHEREAS there was a recent fatal motor vehicle accident at Westney Road and Williamson Drive, and residents continue to call for traffic calming action;

NOW THEREFORE IT BE RESOLVED that Council direct staff to prepare a preliminary design and cost estimate for the installation of two asphalt speed humps on Williamson Drive West between Bellinger and Westney Road;

AND That staff be directed to report back to Council at the September GGC with a preliminary design and cost estimate associated with the above installation of the traffic calming measure on Williamson Drive West.

Motion to Amend

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the motion be amended by adding the following:
That Council direct staff to prepare a preliminary design and cost estimate for the installation of two asphalt speed humps on Ravenscroft Road between Chatfield Drive and Westney Road.

WITHDRAWN

Motion to Defer

Moved by: M. Crawford
Seconded by: L. Bower

That the motion regarding Traffic Calming Action for Williamson Drive be deferred to the October 19, 2020 Council Meeting.

CARRIED

Closed Session (10:49 p.m.)

11. Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: R. Tyler Morin
Seconded by: A. Khan

That Council convene to a Closed Session pursuant to Section 239 (2) (b) and (k) of the *Municipal Act, 2001,* as amended, to discuss personal matters about identifiable individuals, including municipal or local board employees, and a position, plan, procedure, criteria or instruction to be applied to any negotiations carried on or to be carried on by or on behalf of the municipality or local board.

CARRIED

11.1 **Personnel Matters**

11.2 **A position, plan, procedure, criteria or instruction to be applied to negotiations carried on or to be carried on by or on behalf of the municipality**

Open Meeting (12:09 a.m.)

Ratify Actions Taken In Closed Session

Moved by: S. Lee
Seconded by: L. Bower

That all directions approved in the Closed Session be ratified.

CARRIED

12. By-laws

Moved by: R. Tyler Morin
Seconded by: L. Bower

That By-law numbers 24-2020 to 26-2020 be read a first, second and third time and passed.

CARRIED

13. Notice of Motion

None

14. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities, including an announcement by Premier Doug Ford to be made at Lakeridge Health Ajax Pickering Hospital on the afternoon of on July 28, 2020.

15. Confirming By-Law

Moved by: L. Bower
Seconded by: S. Lee

That By-law number 28-2020 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its special meeting held on July 27, 2020 be read a first, second and third time and passed.

CARRIED

16. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the July 27, 2020 meeting of the Council of the Town of Ajax be adjourned. (12:12 a.m.)

CARRIED

Mayor

Acting D-Clerk